

ELIZABETH II



1990 CHAPTER xii

An Act to free certain land on the south bank of the river Thames from any trust which allows the use thereof by the public as an open space.

[28th March 1990]

WHEREAS—

(1) The British Film Institute (hereinafter called “the Institute”), formerly incorporated as a limited company under the Companies Act 1948, was incorporated by Royal Charter in 1983:

1948 c. 38.

(2) The objects of the Institute are to encourage the development of the art of film in Great Britain, to promote its use as a record of contemporary life and manners, to foster study and appreciation of it from these points of view, to foster study and appreciation of films for television and television programmes generally and to encourage the best use of television in Great Britain:

(3) In pursuance of its objects, in 1952 the Institute established the National Film Theatre on a site on the south bank of the river Thames beneath Waterloo Bridge and in 1988 created a Museum of the Moving Image on the site:

(4) In furtherance of its objects and to encourage public awareness and use of the National Film Theatre and the Museum of the Moving Image, the Institute has provided a public restaurant and other facilities:

(5) The Institute wishes to improve the quality of the facilities provided on the south bank of the river Thames by the provision of a greatly improved public restaurant and improved visual amenity:

(6) To provide these facilities it is necessary for the Institute to use an area of approximately 207 square metres which is currently used by the public as an open space for the consumption of food which has been bought at the existing public restaurant:

(7) On 19th April 1985 the Lambeth London Borough Council granted planning permission to the Institute for the development proposed:

(8) It is expedient that if and when the Institute have acquired the necessary interest in the land and have started the development proposed the land should be freed from any trust which allows the use thereof by the public as an open space:

(9) The purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows: —

Short title.

1. This Act may be cited as the British Film Institute Southbank Act 1990.

Interpretation.

2. In this Act —

“the blue land” means the land delineated on the signed plan and thereon shown coloured blue;

“the Institute” means the British Film Institute;

“the pink land” means the land delineated on the signed plan and thereon shown coloured pink;

“the planning permission” means the permission granted by the Lambeth London Borough Council to the Institute on 19th April 1985;

“the signed plan” means the plan signed in triplicate by Lord Aberdare Chairman of the Committee of the House of Lords to whom the Bill for this Act was referred, one copy of which has been deposited at each of the following offices: —

(a) the office of the Clerk of the Parliaments, House of Lords;

(b) the Private Bill Office, House of Commons; and

(c) the office of the Chief Executive of the Lambeth Borough Council.

Land to be freed from trust.

3.—(1) The land to which this section applies is the land in the London borough of Lambeth shown coloured pink and blue on the signed plan, being part of the land laid out and maintained as a public open space within the meaning of the Open Spaces Act 1906 and commonly known as the Riverside Walk.

1906 c. 25.

(2) For the purpose of facilitating the extension of the National Film Theatre on the south bank of the river Thames beneath Waterloo Bridge, the land to which this section applies is hereby freed from any trust which allows the use thereof by the public as an open space:

Provided that nothing in this subsection shall prejudice or affect any right or interest which any person may have in, under or over the land to which this section applies otherwise than as a member of the public.

4.—(1) Section 3 shall come into operation on a date appointed by resolution of the Institute, and the Institute shall cause notice of such resolution to be published in the London Gazette. Commencement.

(2) The date appointed by the Institute under subsection (1) above shall not be earlier than the date upon which the Institute shall have—

- (a) acquired a freehold or leasehold interest in the blue land; and
- (b) started the development permitted by the planning permission.

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The British Film Institute Southbank Act 1990 is a piece of legislation that sets out the framework for the operation of the British Film Institute Southbank. It covers the appointment and removal of the Director, the powers of the Director, the funding of the Institute, and the powers of the Secretary of State. The Act also sets out the powers of the Institute to acquire and dispose of land, to enter into contracts, and to borrow money. The Act is a key piece of legislation that governs the operation of the British Film Institute Southbank.